

claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

4. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE AND PRODUCTION IN
RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: YEFENAU, PAVEL

TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Special Interrogatories served on Plaintiff Maria Seredkina. The Court received no timely opposition

Background

Pursuant to the declaration from Defendant Plaintiff served responses to Requests for Production of Documents (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, Plaintiff did not fully address or amend responses to Requests 3 and 4. Defendant seeks further responses to these two requests. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant’s Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Request for Production of Documents No. 3

Defendant sought documents relating to Stuart Maschmeier that Defendant is believed to have accessed. Plaintiff responded by identifying the categories of documents but stating that all the material was deleted. Plaintiff has amended her response to comply with the Code and it appears satisfactory at this time.

Request for Production of Documents No. 4

Defendant sought documents relating to Plaintiff’s employer Zeiss that Defendant is believed to have accessed. Plaintiff responded that the request was overbroad and implicated confidential and

proprietary information. The Court does not agree with the overbreadth objection in this case. Plaintiff must begin by precisely identifying the information. If any information is confidential and cannot be produced even with a protective order, then Plaintiff must log it so that Defendant can review whether to seek further guidance from the Court.

Sanctions

Defendant also seeks sanctions in the amount of \$1,247.50. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. Counsel's explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

5. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This demurrer was rendered moot by Defendant's filing of an Answer.

6. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This Motion was rendered moot by Defendant's filing of an Answer.

7. 9:00 AM CASE NUMBER: C25-01410
CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
***HEARING ON MOTION IN RE: SANCTIONS**
FILED BY: GARCIA, OSVALDO
TENTATIVE RULING: